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तारीख ६/११/२०१६

नाम पं. क. सुमन जैन

वै. का. पु.

सतीश कुमार नाथालाल पटेल

सा. नं. अ. स. जी. ८५/१६८७

अमदावाद. स. र. ओ. ना. स. पं. १६

सतीश कुमार नाथालाल पटेल

S. N. Patel

THE MEMORANDUM OF ASSOCIATION

A. The INDENTURE made at Ahmedabad this Sixteenth Day of July One Thousand Nine Hundred and Ninety Six between (1) Shri Pankaj Suman Jain, son of Shri Indra Prasad Jain, of Ahmedabad, Indian inhabitant, herein after called "the Settlor" of the one part and (1) Shri Pankaj Suman Jain, son of Indra Prasad Jain, of Ahmedabad (2) Shri Ashok Narayan Korwar, son of Shri Narayan M. Korwar, of Ahmedabad, (3) Shri Pankaj Chandra, son of Shri Prem Chandra Saxena, of Ahmedabad, and (3) Shri Rajesh Agrawal, son of Shri DevaKaran Agrawal, of Anand, all Indian inhabitants, herein after jointly referred to as the "Trustees" of the other part.

WHEREAS

The Settlor is desirous of creating and establishing a public charitable trust for the objectives described as herein under the Memorandum of Association of the Trust.

Pankaj Chandra
Agrawal

Pankaj Chandra
Agrawal

The Settlor is absolutely seized and possessed of or is otherwise well and sufficiently entitled to, inter-alia, a sum of Rs. 2000/- (Rupees Two Thousands only);

To effectuate his aforesaid desire, the SETTLOR does hereby PAY, ASSIGN, HAND OVER AND TRANSFER to the trustees, the aforesaid sum of Rs. 2000/- (Rupees Two Thousands only) by way of a cheque bearing no. 165258, dated July 16, 1996, drawn on the State Bank of India, IIM Branch, Ahmedabad, the receipt whereof the trustees hereby admit and acknowledge, with the intention that the trustees shall hold and stand possessed of the said sum and the income arising therefrom UPON THE TRUST for the purpose hereinafter stated and subject to the Rules and Regulations hereinafter declared of and concerning the same which the trustees have agreed to.

NOW THIS INDENTURE WITNESSETH AS FOLLOWS:

1. Name of the Trust

The name of the trust shall be "Education Support Organization", hereinafter called as ESO and referred as the trust.

2. Registered Office

The registered office of the trust shall be situated at present at the following address:

302, Indian Institute of Management Campus
Vastrapur, Ahmedabad 380015

3. Aims and Objective

The aims and objective of the trust are as follows:

- (a) To develop, test, demonstrate and promote suitable methodologies and approaches to education, with particular reference to the needs of a rural and urban poor.
- (b) To undertake and support the projects in the primary and elementary education, by itself and in collaboration with other agencies.
- (c) To set up and manage the primary classes and schools in rural and urban areas with emphasis on child centered education.
- (d) To provide such help and support to poor children as is needed, including financial, for their effective participation in education programs supported by the trust.





2

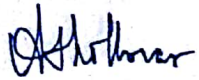
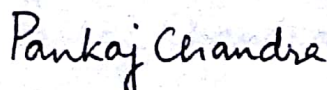
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- (e) To assist and support other agencies in setting up and managing primary education programs for rural and urban children.
- (f) To provide such help to other institutions, including financial, that shall promote effective participation in education, both directly and indirectly.
- (g) To undertake planning and formulation of education projects independently or in association with other agencies for implementation.
- (h) To develop teacher training methodology and conduct training of primary teachers.
- (i) To develop and produce suitable education material including the books and other teaching aids for primary classes.
- (j) To conduct research on various aspects of primary education and disseminate the research findings.
- (k) To provide training and organize seminars and workshops on issues related to education.
- (l) To undertake policy lobbying, independently or in association with other agencies, for promoting effective primary education in India and abroad.
- (m) To do all other lawful activities, either alone or in association with other organization, as are incidental or ancillary or conducive to the attainment of any of the above objectives.
- (n) To receive and manage funds to effectively promote the above objectives.

4. Income and Property of the Trust

The income and property of the trust, however derived, shall be applied towards the promotion of the aims and objects thereof as set forth above in this Memorandum of Association. No portion of the income and property of the society shall be paid or transferred, directly or indirectly, by way of dividend, bonus, profit or otherwise, to any persons who at any time are or have been trustees or to anyone claiming through them, provided that nothing therein contained shall prevent the payment in good faith of honoraria, perquisites, facilities of any nature whatsoever to the office bearer and employees as the Governing Board thinks fit in return for any services rendered to the trust.



5. Management of the Trust

Subject to overall supervision and control by and on behalf of the General Body comprising Trustees, all the affairs of the trust shall be managed by a Governing Board constituted in accordance with the rules of the trust included herein. The names and addresses of the present members of the first Governing Board to whom the management and affairs of the trust are entrusted are as under. Any subsequent changes in composition of Governing Board will be filed with the Charity Commissioner.

First Governing Board

Sl. No.	Name and Address	Occupation	Designation
1.	Mr. Pankaj S Jain 302, IIM Campus Ahmedabad	Consultant	Chairman
2.	Dr. Veena Mistry Pro-Vice Chancellor M.S. University Vadodara	Service	Member
3.	Shri B.M. Vyas Managing Director Gujarat Cooperative Milk Marketing Federation Amul Road, Anand	Service	Member
4.	Prof. Tushaar Shah Director Institute of Rural Management Anand	Service	Member
5.	Prof. Rajesh Agawal Associate Professor Institute of Rural Management Anand	Service	Treasurer
6.	Prof. Jagdeep Chhokar Professor Indian Institute of Management Vastrapur, Ahmedabad	Service	Member
7.	Mr. Ajay Mehta Director Sewa Mandir Udaipur	Service	Member

P S H *Agawal* 4
Atul Kumar *Pankaj Chandra*

6. First Trustees of the Trust:

S.N.	Name	Address
1.	Pankaj Suman Jain	302, Indian Institute of Management Vastrapur, Ahmedabad - 380015
2.	Rajesh Agrawal	Associate Professor Institute of Rural Management Anand -38801
3.	Ashok Narayan Korwar	Associate Professor 302, Indian Institute of Management Vastrapur, Ahmedabad - 380015
4.	Pankaj Chandra	Associate Professor 302, Indian Institute of Management Vastrapur, Ahmedabad - 380015

Rules and Regulations
of
Education Support Organization

In these rules, the following expressions shall, unless repugnant to the context, have the meaning herein assigned to them.

- "Trust" means the Education Support Organization.
- "Act" means the Bombay Public Trust Act, 1950.
- "General Body" means the General Body of the trust, constituted in a manner provided in these rules.
- "Governing Board" means the Governing Board of the trust, herein also referred as Board.
- "Chairman" means the Chairman of the General Body and Governing Board of the trust, elected in the manner provided in these rules.
- "Chief Executive Officer" means the Chief Executive Officer of the trust, also referred as CEO, appointed in the manner provided in the rules.
- "Treasurer" means the treasurer of the General Body and Governing Board, elected in the manner provided in the rules.

P. S. Jain
Officer

R. Agrawal
Pankaj Chandra
5

1. Name of the Trust

The name of the trust shall be "Education Support Organization", hereinafter called as ESO and referred as the Trust.

2. Headquarter and Territorial limits

The headquarter of the trust shall be located in the state of Gujarat, and the territorial limits of its operations shall be the States and Union Territories of the Republic of India.

3. Trustees

(a) The number of trustees shall not be less than three and not more than eleven. The first trustees will be the four people as indicated in the list of trustees given in memorandum of association.

(b) If the number of trustees shall fall below three, the trustees shall not, except for the purpose of filling up the vacancy, act so long as the number of trustees is below the said minimum.

4. General Body

All trustees shall constitute the General Body of the Trust.

5. Method to become a Trustee

(a) The current trustees shall appoint new trustees on the basis of consensus decision among them. On becoming trustees, new trustees will become member of General body and will exercise all powers of the General body jointly alongwith all other existing and surviving trustees.

(b) If there is no surviving or continuing trustees, then the Governing Board shall appoint new trustees on the basis of majority decision.

6. Subscription

Trusteeship does not entail any payment of fee or other donation.

7. Category of Trustees

There will be only one category of trustees.


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8. Cessation of Trusteeship

Trusteeship shall cease in case of death, inability to exercise sound judgement or, conviction of a criminal offence involving moral turpitude. Trustees may also end their membership of General Body by voluntarily resigning or seeking retirement.

9. Trustee's Register

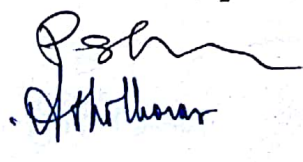
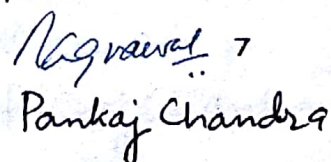
There shall be a trustee's register kept at the registered office or with the Chairman and therein shall be entered the names and address of trustees.

10. Trustee's rights and privileges

All the trustees shall have a right to attend and vote at General Body meetings, and be elected as member of the Governing Board, but shall not be entitled to receive any part of the funds of the trust by way of profit or dividend or any other manner.

11. Power and Duty of General Body

- (a) The General body will meet at least once a year before September 30 in its Annual General Meeting. The Annual General Meeting will receive and approve the duly audited Balance Sheet, Income and Expenditure Statement and the Audit report, and appoint auditors. When appropriate, the Annual General Meeting will also elect the new Governing Board, including the Chairman and Treasurer who will act as the Chairman and Treasurer of both the General Body and Governing Board.
- (b) The management and control of the affairs and funds of the society shall be subject to the control and direction of the General Body. The Chairman shall convene and preside over the general body meeting. In the absence of chairman, General Body will elect any of its member to preside over that meeting.
- (c) The resolutions passed and entered in the minutes book, after they are signed by the Chairman shall be conclusive evidence of the facts and matters noted therein.
- (d) The trustees can at their discretion transact their business by circular also. Circular resolution approved by a majority of the trustees shall be valid and effective as those passed at the General Body meeting.
- (e) Chairman shall convene the meeting of General body on receiving a requisition from at least half of trustees. The

 
Pankaj Chandra

agenda for such meeting shall be decided by the members requisitioning the meeting. If Chairman does not convene meeting within 30 days of receiving the requisition, the members desiring the meeting shall convene the meeting and choose one of them to chair that meeting.

12. Notice of meeting, Quorum, Venue and Vote

Notice:

Twenty one clear days of notice shall be given for each meeting. The notice shall ordinarily be given in writing and sent by post and proof of posting shall be sufficient for the purpose of deciding that the notice is given.

Quorum:

50% of the total membership of General Body shall form the quorum except for adjourned meeting for which no quorum is necessary.

Vote:

In the meeting of the general body, the decisions shall be arrived at on the basis of majority vote. In case of tie due to equal number of votes, the Chairman shall have a casting vote to finalize the decision.

Venue:

The meeting of trustees will be held at such a place as the trustees from time to time may decide, and will be indicated in the notice for meeting.

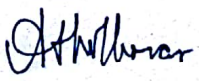
Adjournment:

If no quorum is formed within half-an-hour of the time specified for the meeting called, the meeting shall be adjourned to such a time and place as decided by the present members. Notice for the adjourned meeting shall be given to all the trustees.

13. Governing Board

(a) The Governing Board shall consist of at least seven members including the Chairman and treasurer. In addition, the chief Executive Officer shall be the ex-officio member secretary of the Board. The term of office of the first Governing Board shall be for three years and it shall exercise all powers of the Governing Board till a new Board is elected by the General body of the trust in accordance of these rules.

(b) In any event, for any reason, if the Governing Board is non-existent or incapacitated or is incompetent to exercise its powers and authority, the General body will assume the role and powers of the Governing Board.

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 Pankaj Chandra

14. Election

General body will elect the Chairman, Treasurer and other members of the Governing Board. The nominations for the elections shall be submitted to reach the Chairman not less than a week before the date of election. Each candidate shall be proposed and seconded by two members and he shall state on the nomination form that he is agreeable to function as a member of the Governing Board, if elected. In case of a vacancy arising during the term, the General Body will be requested to fill the vacancy by election or invitation. The election of Governing Board will take place in the Annual General Meeting held near the end of the tenure of current Governing Board.

15. Tenure of Governing Board

The tenure of the Governing Board shall be three years. In case of delay in the election of Governing Board, the existing Board will continue up to a maximum of 48 months till the election of a new Board.

16. The names and address of the members of the governing board, entrusted with the management of the affairs of the trust shall be filed with the Charity commissioner every year in accordance of the provision of section of the act.

17. Functions and power of the Governing Board

- (A) The management and control of the day-to-day administration and control of the finances of the Trust, subject to the overall control and supervision and on behalf of General Body.
- (B) To accept funds in the form of loans, grants or donations in cash or kind on its own behalf or other agencies involved in promoting effective primary education, from the government, industrial and business houses in India and/or foreign funding agencies, and to utilise these funds to provide grants, subsidies and finance in any form to the institutions and agencies needing assistance for their program/projects related to the objectives of the Trust.
- (C) To make such regulations and implement them in respect of the control of the funds and property of the Trust as they deem proper. To invest, guarantee, secure, and deal with the moneys of the Trust as may, from time to time, be determined.
- (D) To prepare, revise and amend the budget estimate of the various projects and activities of the Trust each year, and to sanction the expenditure.

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A. K. Sharma

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Pankaj Chandra

- (E) To perform in the name and on behalf of the Trust all rights, duties and functions falling within and in pursuance of the Memorandum of Association of the Trust.
- (F) To cooperate with any other organization in the matter of undertaking and promoting effective primary education for rural and urban poor.
- (G) To enter into arrangements for and on behalf of the Trust.
- (H) To appoint any sub-committee for the disposal of any business of the Trust or for tendering advice in any matter pertaining to the trust, and to delegate such powers to these sub-committees as they think fit.
- (I) To make, adopt, amend, vary or rescind from time to time rules and regulations for any purposes connected with the management and the administration of the activities of the Trust and for the furtherance of its objects.
- (J) To create administrative, technical and other posts in the cadres and scale of pay as approved by the Board from time to time. However, to meet the emergent need in anticipation of the approval of the Board, Chairman shall have power for creation of any post for a period not exceeding one year.
- (K) To engage and remove professionals, specialists, consultants, experts and other cadre of workers and to pay them remuneration, honoraria and other benefits as decided by the Board.
- (L) To purchase, lease, hire, exchange or otherwise acquire any movable or immovable property anywhere in India and also to acquire adjusting institutions suited for the objectives of the Trust, and to sell, lease, mortgage, dispose, exchange, improve, manage, develop, invest, withdraw, re-invest and otherwise deal with any stocks, shares, bonds, moneys, securities and all kinds of movable and immovable property for all or any of the above objectives for which the Trust is established.
- (M) To organize meetings, consultations, conferences and seminars and to encourage inter-agency and interpersonal communication to make primary education more effective.
- (N) To liaise with the Government, banks, regulatory agencies and other bodies, national or international, whose association and support are beneficial for promoting effective education.
- (O) To establish, support or assist in the establishment of associations, institutions, funds and Trusts established for

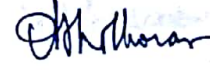

 10
 Pankaj Chandra

the benefit of the community, whose objectives are in general conformity with the objectives of the Trust.

- (P) To pay all costs, charges, expenses of an incidental nature for the promotion, formation, registration and establishment of the Trust and to pay remuneration to any person or agency for any services rendered are to be rendered in the interests of the Trust for the achievement of its objectives.
- (Q) To institute, conduct, defend, submit to arbitration, compromise or abandoned any legal proceedings by or against the Trust, its office bearers and staff in the business affairs of the Trust.
- (R) To determine the manner in which bills, notes, receipts, cheque, releases, contracts and documents, which shall be signed or executed by or on behalf of the Trust.
- (S) To raise or borrow any sum of money from time to time, at their discretion for the purpose of the Trust and to secure the repayments of such money in such manner and upon such terms and conditions in all respects as they think fit.
- (T) To sell, improve, manage, develop, exchange, lease, let, under-lease, sub-let, mortgage, dispose or otherwise deal with the whole or any part of the property of the Trust.
- (U) To construct upon any premises acquired for the purposes of the Trust any building or buildings in furtherance to the objective of the Trust and to alter, add to or improve any building upon such premises or to take any building on rent for running of the program and other affairs of the Trust.
- (V) To appoint any person or persons to collect donations and subscriptions for the Trust.
- (W) To amend, delete or add to the rules and regulations of the Trust which may be deemed necessary to carry out the objectives of the Trust.
- (X) To interpret and implement the rules and regulations described herein.

18. Meetings of Governing Board

- (i) The Board shall meet at least twice in a year. The Chairman may call additional meetings whenever he thinks fit on a written requisition of not less than 3 members.
- (ii) A minimum of 15-day notice shall be given for the meeting of the Governing Board.

  11
 Pankaj Chandra

- iii) One-third of the total members of the Board or a minimum of three including the Chairman shall constitute a quorum of any meeting of the Board.
- (iv) In cases of differences of opinion, the majority view shall prevail. Each member of the Board shall have one vote and if there be any equality of votes on any question to be determined by the Board, the Chairman shall have an exercise an additional casting vote.
- (v) All the meetings shall be convened and presided over by the Chairman, and in his absence from any meeting a member chosen amongst the member present at the meeting will preside.
- (vi) Any resolution may be adopted by circulation among all Board members if signed and approved by the majority of members. Such resolution shall be as effective and binding as if it has been passed at the meeting of the Board. The resolution so adopted shall be presented in the next meeting of the Board for information.

19. Power and Duties of Office Bearers

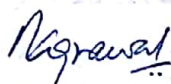
A) Chairman

The Chairman shall convene and preside over all meetings, and exercise such powers as conferred on him by the Board. In his absence, the Board shall elect one member to preside over the meeting.

B) Chief Executive Officer

- i The Chief Executive Officer shall be appointed by the Governing Board and the terms and conditions of appointment shall be determined by the Governing Board.
- ii The Chief Executive Officer shall function in accordance with the direction of the Chairman and the Governing Board, and shall exercise all such powers as conferred on him by the Board.
- iii He/she shall be responsible for the execution of all policies laid down by the Governing Board and shall attend to statutory requirements reposed on the Trust.
- iv He/she shall be responsible for coordination among the professional and other staff of the Trust, delegating duties and responsibilities in consultation with the Chairman.
- v He/she shall sign all deeds and documents on behalf of the Trust.



 12
Pankaj Chandra

- vi Any document or proceedings requiring authentication by the Trust shall be signed by the Chief Executive Officer. He/she shall report the Governing Board on policy matters, and to the Chairman for day-to-day working.
- vii He/she shall keep the minutes of the meetings and shall be responsible for carrying out all correspondence pertaining to the business of the Trust.
- viii He/she shall sue and be sued on behalf of the trust. He shall represent the trust in all legal proceedings and in documents.

C) Treasurer

The treasurer will be responsible to the Chairman and the Governing Board in all matters concerning the accounts, funds and properties of the Trust. The treasurer will be responsible for preparing the Balance Sheet of the Trust within three months from the closing date of the financial year of the Trust and for presenting these to the Governing Board.

20. Audit

The Balance Sheet and Income and Expenditure Account of the Trust at the end of each financial year shall be audited by one or more auditors to be appointed as hereinafter mentioned:

- i General Body in its Annual General Meeting shall appoint competent auditors to audit the Accounts of the Trust on such remunerations and terms and conditions as they deem fit in the event of vacancy arising in the post, the Governing Board may appoint a competent person/agency.
- ii Every auditor of the Trust shall have the right of access at all reasonable time to the books of accounts and vouchers of the Trust and shall be entitled to acquire from the Chairman and members of the Board and all officers and employees any such information and explanation as may be necessary for the performance of the duties of the auditors.
- iii The auditor shall make a report to the General Body of the accounts examined by them and on every Balance Sheet and Income and Expenditure account laid before the General Body during their tenure of office and the report shall, in addition to the requirements of the act in this behalf, state:

Whether or not have obtained all information and explanations they required.

 13
Pankaj Chandra

Whether or not such Balance Sheet exhibits the true and correct view of the state of Trust's affair according to the best of their information and explanations given to them and as are shown by the books of accounts.

21. Opening & Operation of Bank Account

The Chairman/Treasurer and ^{Chief} Executive ^{Officer} ~~Director~~ shall open and jointly operate the Bank Accounts of the Trust. The Funds of the Trust shall be deposited with the Scheduled Bank.

22. Financial Year

The first financial year shall end on March 31, 1997. Thereafter, the financial Year of the Trust shall be from 1st April to 31st March of the next year.

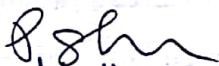
23. Amendments to the rules and regulations will be done in accordance with the applicable provision of the Act.

24. Dissolution

Subject to the provision of the Act, the Trust shall be dissolved or wound up by a resolution of the General Body. If there shall remain, after settling all debts and liabilities of the Trust, any property or money whatsoever, the same shall be given or transferred to an establishment, association or institution established for the benefit of the community and whose objectives are similar to that of the Trust, subject to the applicable provisions of the Act.

25. Applicable Clause

All provisions of the Bombay Public Trust Act 1950 shall apply to this Trust namely Education Support Organization.


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Pankaj Chandra

IN WITNESS WHEREOF THE PARTIES HERETO HAVE SET THEIR RESPECTIVE HANDS THE DAY AND YEAR FIRST HEREINABOVE WRITTEN.

SIGNED, SEALED AND DELIVERED BY
THE WITHINNAMED SETTLOR, SHRI PANKAJ
SUMAN JAIN, S/O SHRI INDRA PRASAD JAIN
in the presence of

Pankaj Suman Jain

- (1) Prof. V. Venkata Rao
Indian Institute of Management
Vastrapur, Ahmedabad-380015

V. Venkata Rao

- (2) Prof. Trilochan Sastri
Indian Institute of Management
Vastrapur, Ahmedabad-380015

S. Trilochan Sastri

SIGNED, SEALED AND DELIVERED BY
THE WITHINNAMED TRUSTEES:

- (1) Shri Pankaj Suman Jain
S/O Shri Indra Prasad Jain

Pankaj Suman Jain

- (2) Shri Ashok Narayan Korwar
S/O Shri Narayan M. Korwar

Ashok Narayan Korwar

- (3) Shri Pankaj Chandra
S/O Shri Prem Chandra Saxena

Pankaj Chandra

- (4) Shri Rajesh Agrawal
S/O Shri DevaKaran Agrawal

Rajesh Agrawal

In the presence of:

- (1) Prof. Rekha Suman Jain
Indian Institute of Management
Vastrapur, Ahmedabad-380015

Rekha Suman Jain

- (2) Prof. V. Venkata Rao
Indian Institute of Management
Vastrapur, Ahmedabad-380015

V. Venkata Rao

- (3) Prof. Trilochan Sastri
Indian Institute of Management
Vastrapur, Ahmedabad-380015

S. Trilochan Sastri